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Case Number: 26STCV01201 Hearing Date: September 24, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 51

HEARING DATE: September 24, 2026

CASE NAME: Francis Martin Argueta v. Jorge Pedro Moya Silva, et al.

CASE NO.: 26STCV01201

DEMURRER

MOVING PARTY: Defendant Enterprise Rent-A-Car

RESPONDING PARTY(S): Plaintiff Francis Martin Argueta

REQUESTED RELIEF:

Demurrer to the First Cause of Action for failing to state sufficient facts.

TENTATIVE RULING:

1. Demurrer to the First Cause of Action is SUSTAINED;
2. Plaintiff shall file his amended complaint within 21 days of notice of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 16, 2026, Plaintiff Francis Martin Argueta ("Plaintiff") filed a First Amended Complaint ("FAC") against Defendants Jorge Pedro Moya Silva ("Silva"), H&M Fashion USA, Inc. ("H&M"), Enterprise Rent-A-Car ("Enterprise"), and Does 1-100 with causes of action for: (1) Negligence; and (2) Negligence per se (as to Silva only).

According to the FAC, on March 20, 2025, Plaintiff was traveling southbound on the 5 Freeway near the 60 Freeway interchange in Los Angeles, when Silva failed to yield and/or stop and rear-ended Plaintiff's vehicle.

On August 6, 2026, Enterprise filed the instant demurrer.[1] On September 11, 2026, Plaintiff timely filed an opposition. On September 17, 2026, Enterprise timely filed a reply.

JUDICIAL NOTICE:

Enterprise requests judicial notice of the Statement of Information for Enterprise filed with the California Secretary of State, specifically "of the fact that Enterprise is in the business of renting and/or leasing vehicles, as this fact is not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy (i.e. statements of information)." (RJN ¶¶ 1-2; Miller Decl., Ex. B.)

Plaintiff does not oppose the request, nor does Plaintiff dispute that Enterprise is engaged in the business of renting and leasing vehicles. (Opp., at p. 9; see also FAC ¶¶ 12, 14.)

The court GRANTS Enterprise's request pursuant to Evidence Code section 452, subdivisions (c) and (h).

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civil Procedure section 430.41 and to demonstrate that they satisfied said meet and confer obligation by submitting a declaration pursuant to section 430.41, subdivisions (a)(2) & (3). Here, Enterprise's counsel sent a meet and confer letter to opposing counsel on July 25, 2026; a response has not been received. (Miller Decl., ¶ 7.) A meet and confer letter is deficient under Code of Civil Procedure section 430.41, subdivision (a); thus, Enterprise's meet and confer efforts are deficient. The court, however, considers the demurrer on its merits.

Demurrer

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn (2007) 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

ANALYSIS:

First Cause of Action: Negligence

In order to state a claim for negligence, Plaintiff must allege: (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Negligent entrustment is a direct-negligence theory. In cases involving negligent entrustment of a vehicle, liability "is imposed on [a] vehicle owner or permitter because of his own independent negligence and not the negligence of the driver.' [internal citations omitted] 'Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner.'" (*Ghezavat v. Harris* (2019) 40 Cal.App.5th 555, 559.) A plaintiff must allege that: (1) the driver was negligent in operating the vehicle; (2) Defendant owned or had possession of the vehicle operated by the driver with the owner's permission; (3) Defendant knew or should have known that the driver was incompetent or unfit to drive; (4) Defendant allowed the driver to drive the vehicle; and (5) the driver's incompetence/unfitness was a substantial factor in causing Plaintiff's harm. (CACI no. 724.)

Enterprise contends that this claim fails because (1) Plaintiff fails to allege non-conclusory factual allegations as to permissive use, negligent operation and control, negligent maintenance and inspection, and/or negligent entrustment claims; and (2) the Graves Amendment bars the claims against Enterprise. Plaintiff argues that: (1) the FAC alleges more than boilerplate language and less particularity is required because the specifics are within Enterprise's control; (2) the Graves Amendment does not bar because it is an affirmative defense and the second element has not been established. Enterprise replies that the FAC is replete with "egregious boilerplate" pleadings and the opposition admits the lack of material allegations in the FAC.

The FAC generally alleges the following: Silva's vehicle was "owned, maintained, leased, entrusted, repaired, inspected, operated or otherwise controlled" by Enterprise. (FAC ¶¶ 2, 13.) Enterprise "was directly involved in the rental transaction by which Defendant MOYA SILVA obtained the Defendant Vehicle and is liable based on its own independent negligent acts and omissions." (FAC ¶ 12.) Enterprise also "participated in, authorized, ratified, managed, maintained, inspected, rented, entrusted, or otherwise controlled the Defendant Vehicle and the rental transaction at issue." (FAC ¶ 14.)

As to the first cause of action, specifically, the FAC alleges that Enterprise: (1) owed a duty of reasonable care to avoid causing harm, "including duties to operate, rent, lease, entrust, inspect, maintain, and control the Defendant Vehicle in a reasonably safe manner;" (2) owed a duty of reasonable care and skill "to all reasonably foreseeable persons, including Plaintiff, to own, lease, manage, maintain, inspect, control, entrust, and operate the Defendant Vehicle in a reasonable manner;" (3) breached said duties by negligently operating, maintaining, leasing, renting, entrusting, inspecting, and/or controlling the Defendant Vehicle; (4) "negligently entrusted, rented, leased, and/or authorized use of the Defendant Vehicle to Defendant MOYA SILVA when they knew, or in the exercise of reasonable care should have known, that he was unfit, incompetent, unauthorized, and/or unsafe to operate the Defendant Vehicle;" and (5) breached its "independent duties by failing to use reasonable care in screening, qualifying, verifying, authorizing, supervising, inspecting, maintaining, and/or entrusting the Defendant Vehicle" to Silva. (FAC ¶¶ 19-23.) As a result, Plaintiff sustained injuries and harm. (FAC ¶ 26.)

The court agrees with Plaintiff that the Graves Amendment does not necessarily bar the negligence claim against Enterprise.

49 U.S. Code section 30106, subdivision (a) states:

"An owner of a motor vehicle that rents or leases the vehicle to a person (or an affiliate of the owner) shall not be liable under the law of any State or political subdivision thereof, by reason of being the owner of the vehicle (or an affiliate of the owner), for harm to persons or property that results or arises out of the use, operation, or possession of the vehicle during the period

of the rental or lease, if—

(1) the owner (or an affiliate of the owner) is engaged in the trade or business of renting or leasing motor vehicles; and

(2) there is no negligence or criminal wrongdoing on the part of the owner (or an affiliate of the owner).”

Plaintiff alleges that Enterprise is independently negligent because it breached its “independent duties by failing to use reasonable care in screening, qualifying, verifying, authorizing, supervising, inspecting, maintaining, and/or entrusting the Defendant Vehicle” to Silva. (FAC ¶¶ 12, 23.) Thus, the Graves Amendment does not bar on the face of the pleading as to the direct-negligence theories.[2]

The court, however, finds that Plaintiff has failed to sufficiently plead material facts to sustain a negligence claim against Enterprise. Plaintiff’s allegations merely recite the elements for negligence and negligent entrustment and fail to plead the underlying material facts. As to negligent entrustment specifically, Plaintiff fails to sufficiently plead the knowledge element: the FAC does not allege facts about how Silva was unfit and/or what circumstances put Enterprise on notice. For example, Silva is not alleged to lack a valid driver’s license, to have a visual impairment, and/or to have presented signs of unfitness at the time of rental. The court also notes that the FAC does not allege any specific maintenance defects for a negligent-maintenance theory. Even viewing the FAC through a lesser pleading standard based on Enterprise’s superior knowledge, the lack of underlying facts is fatal.

Accordingly, the court SUSTAINS Defendant’s demurrer to the First Cause of Action.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect.¿ (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)¿ The plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. (“Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Here, there is a reasonable possibility that Plaintiff can amend the aforementioned defects. The court therefore grants leave to amend.

CONCLUSION:

For the foregoing reasons, the court decides the pending motion as follows:

1. Demurrer to the First Cause of Action is SUSTAINED;
2. Plaintiff shall file his amended complaint within 21 days of notice of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 24, 2026 _____ Upinder S. Kalra

Judge of the Superior Court

[1] The court notes that Enterprise's moving papers state that it demurs to the First Cause of Action pursuant to Code of Civil Procedure section 430, subdivision (e). The Code does not have a section 430. The error seems to be a Scrivener's error based on the body of the moving papers. Thus, the court corrects the section to 430.10, subdivision (e).

[2] The Court of Appeal in *Tavares v. Zipcar, Inc.* (2026) 118 Cal.App.5th 219, 236-237, held that "[t]he Graves Amendment preempts state laws, such as Vehicle Code section 17150, which impose vicarious liability on the owners of leased or rented vehicles based solely on their ownership." The court granted Enterprise's request for judicial notice that it is engaged in the business of renting or leasing motor vehicles, and Plaintiff does not oppose this threshold question. Thus, "any vicarious liability claim based solely on [Enterprise's] ownership of the vehicle is preempted by the Graves Amendment." (*Id.*, at p. 237.)